

## CHAPTER - 6

# Parliament

### PARLIAMENT OF INDIA

#### The House of the People (Lok Sabha)

The Lok Sabha is the popular house of the parliament because its members are directly elected by the common electorates of India. All the members of this House are popularly elected, except not more than two from the Anglo-Indian community, who can be nominated by the President. In the Constitution, the strength of the Lok Sabha is provisioned under Art. 81 to be not more than 552 (530 from the States, 20 from the Union Territories & 2 may be nominated from the Anglo-Indian community). The Government has extended this freeze in the Lok Sabha seats till the year 2026 by Constitution (84th Amendment Act, 2001).

#### Special Powers of the Lok Sabha

1. Money & Financial Bills can only originate in the Lok Sabha.
2. In case of a Money Bill, the Rajya Sabha has only the right to make recommendation & the Lok Sabha may or may not accept the recommendation. Lok Sabha enjoys exclusive legislative jurisdiction over the passage of the Money Bills.
3. The Council of Ministers are responsible only to the Lok Sabha & hence the Confidence & No-confidence motions can be introduced in this House only.
4. Under Art. 352, the Lok Sabha in a special sitting can disapprove the continuance of a national emergency proclaimed by the President, even if the Rajya Sabha rejects such a resolution.

#### Tenure of the Lok Sabha

The normal tenure of the Lok Sabha is five years. But the House can be dissolved by the President even before the end of the normal tenure. Also, the life of the Lok Sabha can be extended by the Parliament beyond the five-year term during the period of national emergency proclaimed under Art. 352.

#### Qualifications for the membership of Lok Sabha

1. be a citizen of India.
2. be not less than 25 years of age.
3. be a registered voter in any of the Parliamentary constituencies in India.
4. should not hold any office of profit.

5. Should not be insolvent.

6. Should not be mentally unsound.

#### Speaker & Deputy Speaker of Lok Sabha

- (1) Chief presiding officer of the Lok Sabha.
- (2) The Speaker presides over the meetings of the House & his rulings on the proceedings of the House are final.
- (3) The Speaker & Deputy Speaker may be removed from their offices by a resolution passed by the House by an effective majority of the House after a prior notice of 14 days to them.
- (4) The Speaker, to maintain impartiality of his office, votes only in case of a tie i.e to remove a deadlock & this is known as the Casting Vote.

#### Special powers of the Speaker

1. Whether a Bill is Money Bill or not is certified only by the Speaker & his decision in this regard is final & binding.
2. The Speaker, or in his absence, the Deputy Speaker, presides over the joint-sittings of the parliament.
3. The committees of parliament function essentially under the Speaker & their chairpersons are also appointed or nominated by him. Members of the Rajya Sabha are also present in some of these committees.
4. If the Speaker is a member of any committee, he is the ex-officio chairman of such a committee.

#### Special position of the Speaker

1. Though he is an elected member of the Lok Sabha, he continues to hold his office even after the dissolution of the House till a new Lok Sabha is constituted. This is because he not only presides & conducts the parliamentary proceedings but also acts as the Head of the Lok Sabha Secretariat which continues to function even after the House is dissolved.
2. The Speaker presides over the joint sitting of the two Houses of the Parliament.
3. Speaker certifies a Bill as Money Bill & his decision is final in this regard.
4. The Speaker is ex-officio President of Indian Parliamentary Group which in India functions as the national group of Inter parliament Union.

### Pro tem Speaker

As provided by the Constitution, the Speaker of the last Lok Sabha vacates his office immediately before the first meeting of the newly elected Lok Sabha. Therefore, the President appoints a member of the Lok Sabha as the Pro tem Speaker. The President himself administers oath to the Pro tem Speaker.

The Pro tem Speaker has all the powers of the Speaker. He presides over the first sitting of the newly elected Lok Sabha. His main duty is to administer oath to the new members.

### RAJYA SABHA

The Rajya Sabha (RS) or Council of States is the upper house of the Parliament of India. Membership is limited to 250 members, 12 of whom are nominated by the President of India for their contributions to art, literature, science, & social services.

The remainder of the body is elected by the state & territorial legislatures. Members sit for six-year terms, with one third of the members retiring every two years. The Rajya Sabha meets in continuous sessions and, unlike the Lok Sabha, the lower house of Parliament, is not subject to dissolution. The Vice President of India (currently, Venkaiah Naidu) is the ex-officio Chairman of the Rajya Sabha, who presides over its sessions. The Deputy Chairman who is elected from amongst the RS members, takes care of the day-to-day matters of the house in the absence of the Chairman. The Rajya Sabha held its first sitting on 13 May 1952.

### Leader of the House

Besides the Chairman (Vice-President of India) & the Deputy Chairman, there is also a function called Leader of the House. This is a cabinet minister - the PM if he is a member of the House, or another nominated minister. The Leader has a seat next to the Chairman, in the front row.

### Qualifications for the membership of Rajya Sabha

- (a) be a citizen of India.
- (b) be 30 years of age or more.
- (c) not be holding any office of profit under the central or state Government or local body &
- (d) possess all other qualification prescribed by the act of parliament from time to time.

### Powers of Rajya Sabha

It enjoys co-equal power with the Lok Sabha in respect of all bills other than money bill. In case of Money Bills, Rajya Sabha has no powers.

### Exclusive Functions of Rajya Sabha

The Rajya Sabha, under Article 249, may by a special majority of two-thirds votes adopt a resolution asking the Parliament to make laws on subjects of the State list, in the national interest.

This resolution gets due attention from the Parliament. The resolution remains valid for one year only which however can be extended further in terms of another one year.

Secondly, Rajya Sabha can take steps to create All India Services by adopting resolutions supported by special majority in the national interest.

Thirdly, Rajya Sabha has the exclusive right to initiate a resolution for the removal of the Vice-President. This becomes the exclusive right of the Rajya Sabha because the Vice-President happens to be its Chairman & draws his salary as such.

### DIFFERENT TERMS RELATED TO PARLIAMENT

#### (a) Summoning

The President from time to time summons each House of Parliament to meet. But, the maximum gap between two sessions of Parliament cannot be more than six months. In other words, the Parliament should meet at least twice a year. There are usually three sessions in a year:

- the Budget Session (February to May);
- the Monsoon Session (July to September); and
- the Winter Session (November to December).

The period between the prorogation of a House & its reassembly in a new session is called 'recess'.

#### (b) Joint Sitting

Under Article 108, there is a Provision of Joint sitting of both the Houses of the Parliament.

The Lok Sabha speaker presides over the joint sitting [Art. 118(4)].

There are only three occasions in the history of Indian Parliament that the joint sessions of the Parliament took place. They are as follows:

- (i) In May 1961, for Dowry Prohibition Bill, 1959.
- (ii) In May 1978, for Banking Services Commission.
- (iii) In 2002 for POTA (Prevention of Terrorism Act).

### Joint sitting of both Houses can be convened on two occasions:

- (i) For resolving any deadlock over the passage of a Bill.
- (ii) Special address by the President at the commencement of the first session after each general election of the Lok Sabha; First Session of each year (the Budget Session).

**Note:** Joint sitting cannot be called for resolving deadlock regarding "Money Bill" & "Constitution Amendment Bill".

#### (c) Prorogation

The presiding officer (Speaker or Chairman) declares the House adjourned sine die, when the business of a session is completed. Within the next few days, the President issues a notification for prorogation of the session. However, the President can also prorogue the House while in session.

#### (d) Adjournment

This is a short recess within a session of the Parliament, called by the presiding officer of the House. Its duration may be from a few minutes to days together.

#### (e) Adjournment sine die

When the House is adjourned without naming a day for reassembly, it is called adjournment sine die.

### Grounds for disqualification of members of Parliament

There are five grounds for disqualification of Member of Parliament.

- ❖ **Article 102(1) (a):** A Member of Parliament shall be disqualified from being a member of House, if he holds any office of profit under state other than an office declared by Parliament by law not to disqualify its holder.
- ❖ **Article 102(1) (b):** If the Member of Parliament is of unsound mind & stands so declared by the court of law
- ❖ **Article 102(1) (c):** If he is a discharged insolvent declared by court of law.
- ❖ **Article 102(1) (d):** If he is not a citizen of India or has acquired the citizenship of a foreign state or is under any acknowledgement of allegiance to a foreign state.
- ❖ **Article 102(2):** If a person is disqualified being a Member of Parliament under anti-Defection Law (Tenth Schedule).

### Legislative procedures in Parliament

The legislative procedure is identical in both the Houses of Parliament. Every bill has to pass through the same stages in each House. A bill is a proposal for legislation & it becomes an act or law when duly enacted.

Bills introduced in the Parliament are of two kinds: public bills & private bills (also known as government bills & private members bills respectively). Though both are governed by the same general procedure & pass through the same stages in the House, they differ in various respects.

### BILLS IN PARLIAMENT

The four kinds of bills mentioned in the Constitution are:

- ❖ **Ordinary Bill**
- ❖ **Money Bill**
- ❖ **Financial Bill**
- ❖ **Constitutional Amendment Bill**

#### • Ordinary Bill

Any bill other than Money, Financial or Constitution Amendment bill is called an Ordinary bill. It can be introduced in either Houses of the Parliament. It does not need the recommendation of the President for its introduction in Parliament (except a bill under article 3). It is passed by a simple majority by both the Houses. They enjoy equal legislative powers over the passage of an ordinary bill. If there is a deadlock over the bill it can be resolved in a joint sitting of both the Houses of Parliament.

#### • Money Bill

A bill that deals exclusively with money matters that are mentioned in Article 110 in Constitution is called a Money Bill. These Money matters are:

- (1) Imposition, abolition or alternation of any tax.
- (2) The borrowing of any money or giving any guarantee by the Govt. of India.
- (3) The custody of the Consolidated Fund of India or Contingency fund of India or deposition or withdrawal of any money from any such funds.
- (4) The appropriation of the money out of the Consolidated Fund of India.
- (5) Declaring any expenditure as charged on the Consolidated Fund of India.
- (6) The receipt of money on the account of consolidated Fund of India or Public Account of India.
- (7) Any matter that is incidental to the above matters.

A money bill can be introduced only in Lok Sabha on the recommendation of the President. It is passed by a simple majority by both the Houses of Parliament. The Lok Sabha enjoys overriding legislative power in the passage of a money bill & Rajya Sabha cannot reject or approve a money bill by virtue of its own legislative power. Any money bill shall bear the certificate of speaker that it is a money bill. The Speaker's decision in this regard is final & binding & cannot be questioned in any court of law.

**A money bill is transmitted to Rajya Sabha after it has been passed by Lok Sabha. The Rajya Sabha can exercise any of the following four options:**

- (i) It can pass the bill.
- (ii) It rejects the bill outright – upon being rejected the bill is deemed to have been passed by both the Houses.
- (iii) The Rajya Sabha does not pass the bill for 14 days, then on the expiry of 14th day after having received the bill it is deemed to have been passed by both the Houses.
- (iv) The Rajya Sabha suggests amendments to the bill, the bill then goes back to the Lower House. If the Lok Sabha accepts one or more of the amendment then the bill is deemed to have been passed in that form on the other hand if Lok Sabha rejects the amendment then the bill is deemed to have been passed in its original form.

There is no deadlock between the Houses over the passage of a money bill. When a money bill is presented to the President, under the Constitution he shall declare that he give assent or withhold assent.

- **Financial Bill**

A Bill apart from dealing with one or more money matters if also deals with one or more non-money matters then it is called a financial Bill. It is introduced in the same manner as that of money Bill. Since it contains non-money matters after its introduction, it is passed in same manner an ordinary bill is passed.

**Constitutional Amendment Bill**

A bill introduced under article 368 to amend one or more provisions of the Constitution is called a Constitutional Amendment Bill. It can be introduced in either House of the Parliament. It does not require the recommendation of President for its introduction. It shall be passed by both the House of the Parliament

sitting separately by majority of not less than 2/3rd of members present & voting & a majority of total strength of the House. The Constitution does not provide for a joint sitting of both the Houses of the Parliament if a deadlock develop between the two Houses over the passage of a Constitutional Amendment Bill.

**The 101st Amendment Act :** Amendment of article 248, 249, 250, 268, 269, 270, 271, 286, 366, 368, sixth schedule, seventh schedule. Deletion of Article 268A. It was enforced since 8 September 2016. It is related to the Goods and Services Tax Bill.

**Veto power of the President:**

A bill passed by the Parliament can become an act only if it receives the assent of the President. However, the President has the veto power over the bills passed by the Parliament, i.e. he can withhold his assent to the bills.

- **Absolute Veto**

It refers to the power of the President to withhold his assent to a bill passed by the Parliament. The bill then ends & does not become an act. Usually, this veto is exercised in the following two cases:

- (a) With respect to private members bills; &
- (b) With respect to the government bills when the cabinet resigns (after the passage of the bills but before the assent by the President) & the new cabinet advises the President not to give his assent to such bills.

- **Suspensive Veto**

The President exercises this veto when he returns a bill for reconsideration of the Parliament. However, if the bill is passed again by the Parliament with or without amendments & again presented to the President, it is obligatory for the President to give his assent to the bill. The President does not possess this veto in the case of money bills.

- **Pocket Veto**

In this case, the President neither ratifies nor rejects nor returns the bill, but simply keeps the bill pending for an indefinite period. This power of the President not to take any action (either positive or negative) on the bill is known as pocket veto. There is no time limit for the President to give comment on bills under this veto.